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25-CIV-05179

MARCIA SMITH, AS ADMINISTRATOR FOR THE ESTATE OF MARISSA HARRIS VS GLOBAL BLOOD THERAPEUTICS INC.

MARCIA SMITH, AS ADMINISTRATOR FOR THE ESTATE OF MARISSA HARRIS  
GLOBAL BLOOD THERAPEUTICS INC.

LAURA STEMKOWSKI  
GEORGE L GIGOUNAS

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DEFENDANT GLOBAL BLOOD THERAPEUTICS, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

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For the reasons stated below, Defendant Global Blood Therapeutics, Inc.'s demurrer to the first amended complaint (FAC) is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the first cause of action (strict liability—design defect), and **SUSTAINED WITH LEAVE TO AMEND** as to the second through tenth causes of action. The demurrer addresses the operative FAC, not the proposed second amended complaint (SAC).

Plaintiff shall file and serve an amended complaint within 20 days after service of notice of entry of the order, unless the Court otherwise orders in connection with the pending motion for leave to file the SAC.

**LEGAL STANDARD**

A demurrer tests the sufficiency of facts pleaded, not the truth of the pleaded facts. The Court accepts properly pleaded material facts as true, but not legal conclusions, and considers only the pleading and properly noticed matters. (Code Civ. Proc., §§ 430.30, subd. (a), 452; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Leave to amend is appropriate where a reasonable possibility of curing a defect is shown. (*Blank*, at p. 318.) The proposed SAC is not the operative pleading; its new survival claim and renumbered wrongful-death claim are not before the Court on this demurrer.

**FIRST CAUSE OF ACTION—STRICT LIABILITY, DESIGN DEFECT**

Plaintiff agrees to withdraw this theory. California does not impose strict liability for a prescription drug's alleged design defect under the theory advanced here. (*Brown v. Superior Court* (1988) 44 Cal.3d 1049, 1061, 1069.) This disposition does not decide whether an adequately pleaded negligence theory would be viable.

The demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

**SECOND CAUSE OF ACTION—STRICT LIABILITY, FAILURE TO WARN**

To the extent this claim would require a change to FDA-approved labeling, the FAC does not identify newly acquired information available at a legally relevant time before Decedent's alleged injury that could have supported a unilateral strengthening of the label through the changes-being-effected procedure. (21 C.F.R. §§ 314.3(b), 314.70(c)(6)(iii)(A); *Wyeth v. Levine* (2009) 555 U.S. 555; *Merck Sharp & Dohme Corp. v. Albrecht* (2019) 587 U.S. 299.) The post-2021 studies and 2024 withdrawal described in the FAC do not, without more, establish what Defendant could have known while Decedent was being treated. The pleading also does not allege nonconclusory warning causation through the prescribing clinician: an adequate warning would have altered the prescribing decision or would have been communicated to Decedent, after which an objectively prudent person in her position would have declined treatment. (*Himes v. Somatics, LLC* (2024) 16 Cal.5th 209, 219.) Plaintiff may amend to allege an adequately supported, temporally relevant warning and causal pathway, if she can do so in good faith.

The demurrer is **SUSTAINED WITH LEAVE TO AMEND.**

**THIRD CAUSE OF ACTION—NEGLIGENCE**

The FAC combines design, testing, manufacture, promotion, and warning allegations without sufficiently identifying a negligent act or omission, an applicable duty, and how that conduct caused Decedent's injury. The proposed preapproval negligent-design theory is not distinctly pleaded. The Court does not resolve whether that hypothetical theory would be federally preempted on a materially different amended pleading. *Gilead Tenofovir Cases* (2026) 20 Cal.5th 390 rejects a proposed duty to develop and market a different, safer alternative to a concededly non-defective drug; it does not itself resolve the sufficiency or preemption of a claim that this drug was negligently designed or warned against. Amendment should identify the particular theory, material time period, defect or unreasonable conduct, and causation.

**FOURTH CAUSE OF ACTION—BREACH OF EXPRESS WARRANTY**

The FAC does not identify a sufficiently particular affirmation of fact or promise forming the basis of the alleged warranty, how it became part of the relevant transaction, how it was false or breached, or facts connecting the claimed breach to Decedent's use and injury. (See *Weinstat v. Dentsply International, Inc.* (2010) 180 Cal.App.4th 1213, 1227.) If Plaintiff premises the claim on warnings or promotion communicated through a prescriber, she must plead facts supporting that pathway; the learned intermediary doctrine does not dispense with the separate elements of express warranty.

The demurrer is **SUSTAINED WITH LEAVE TO AMEND.**

**FIFTH CAUSE OF ACTION—BREACH OF IMPLIED WARRANTY**

An implied warranty does not require an identified express representation. Nevertheless, the FAC pleads the asserted lack of merchantability or fitness, and the causal connection to Decedent's injuries, largely as

conclusions. Plaintiff may identify the particular implied warranty invoked, the alleged failure to conform to it, the legally relevant transaction, and resulting harm. To the extent this count actually rests on omitted risk warnings, Plaintiff must also plead a plausible physician-mediated causal theory. The absence of a specific advertisement seen by a physician is not by itself a complete answer to an independent implied-warranty claim.

The demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

**SIXTH CAUSE OF ACTION—FRAUD**

The FAC does not identify the actionable statement or omission with sufficient detail, when and to whom it was conveyed, the basis for knowledge or a duty to disclose, justifiable reliance by the appropriate recipient, and resulting injury. Fraud must be pleaded with particularity, subject to appropriate flexibility for facts uniquely within a defendant's knowledge. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 904.) Plaintiff may plead particularized communications to Decedent or her treating clinician, without assuming that only one recipient or only one means of reliance is legally possible.

The demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

**SEVENTH THROUGH NINTH CAUSES OF ACTION—FALSE ADVERTISING LAW, CONSUMERS LEGAL REMEDIES ACT, AND UNFAIR COMPETITION LAW**

The current allegations substantially repeat the generalized advertising, omission, and reliance allegations without adequately identifying the actionable practice, statutory basis, causation, and relief available to this Plaintiff in her pleaded representative capacity. Fraud-based theories must be pleaded with the particularity appropriate to those theories; the FAC also must address the applicable injury-in-fact and loss-of-money-or-property requirements, to the extent the invoked statute requires them, and identify a legally available form of relief. The physician's role in the use of prescription medication must be considered where the statutory theory depends on a warning or representation influencing treatment; the learned intermediary doctrine is not a substitute for separate analysis of each statute. (See Bus. & Prof. Code, §§ 17200, 17204, 17500, 17535; Civ. Code, §§ 1750 et seq.)

The demurrer is **SUSTAINED WITH LEAVE TO AMEND as to each count**.

**TENTH CAUSE OF ACTION—WRONGFUL DEATH**

This derivative-injury theory as pleaded depends on an adequately alleged underlying wrongful act and causal connection to Decedent's death. Because the underlying claims are insufficiently pleaded, the wrongful-death count also requires amendment. This ruling does not hold that every underlying statutory theory, regardless of

its remedial limitations, independently supplies a wrongful-death predicate. (See Code Civ. Proc., § 377.60; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.)

The demurrer is **SUSTAINED WITH LEAVE TO AMEND.**

**FURTHER PROCEEDINGS**

The motion for leave to file the proposed SAC remains pending. Because that proposed pleading adds a survival claim but otherwise appears not to cure the defects identified here, any further amendment must address the specific grounds sustained in this ruling. The Court does not treat a proposed, unfiled pleading as superseding the FAC.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

Posted: 3:00 P.M.

